

BACKGROUND INTERNATIONAL COURT OF JUSTICE

INDEX

Introduction	3
History of the Committee	5
Long term	7
Short Term	10
Topic and the United Nations	12
Controversy Points	15
Objectives	17
Conclusion	18
Countries	20
List of Members of the Court	21
Recommended Sources	23
References	25

Introduction

"Application of the Convention on the Prevention and Punishment of the Crime of Genocide in the Gaza Strip (South Africa v. Israel)."

Greetings, Judges and Advocates, The International Court of Justice Chair extends a warm welcome to all participants of the 16th edition of the Model of United Nations Instituto Oriente 2026. In our capacity as Chair, on behalf of Instituto Oriente, the Academy of English and the Secretariat, are grateful for your presence and the enthusiasm brought to this committee.

The decision to participate is sincerely valued. This Chair hopefully believes and trusts in the capacities, values and qualities that each member of the courtowns. We, as a Chair, aspire and will work to make possible that each member gets an unforgettable time and experience at this Model of United Nations.

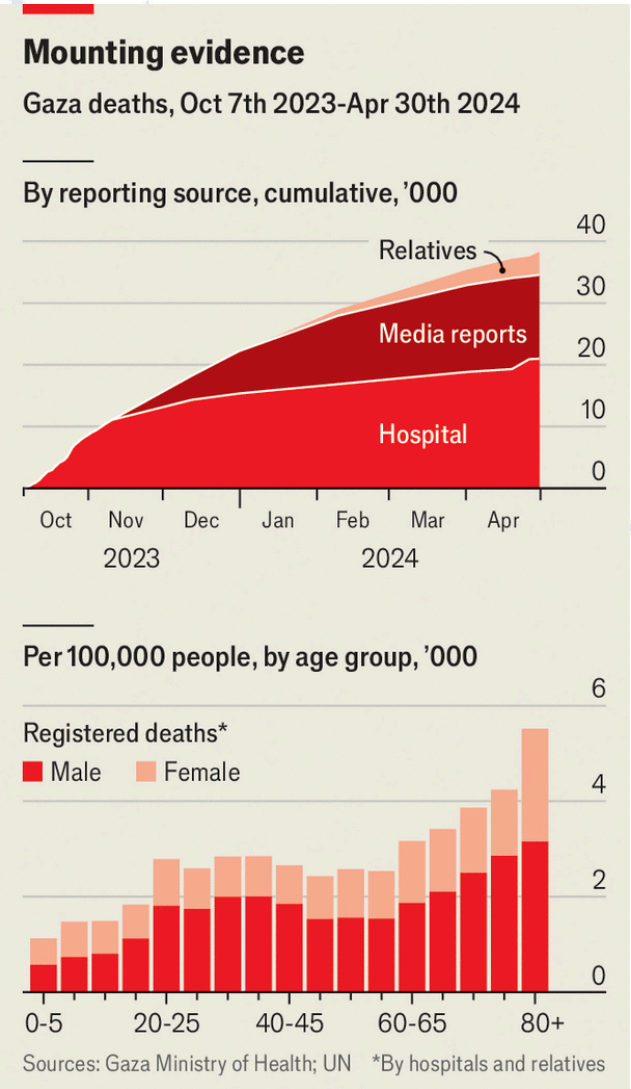
The present case brought before the International Court of Justice (ICJ) addresses one of the most serious and complex legal controversies of our time: the Application of the 1948 Convention on the Prevention and Punishment of the Crime of Genocide in the context of the ongoing conflict in the Gaza Strip. On 29 December 2023, the Republic of South Africa submitted a case against the State of Israel, alleging violations of its obligations under the Genocide Convention in connection with its military operations in Gaza following the events of 7 October 2023.

South Africa contends that the scale and nature of Israel's military actions, including widespread civilian casualties, devastation of infrastructure, and deprivation of essential services, amount to genocidal acts as defined by Article II of the Convention. It argues that Israel has failed to prevent genocide, incited its commission, and violated its obligation not to commit genocide itself. South Africa has also requested provisional measures, seeking to halt Israel's military operations and ensure humanitarian access to affected populations.

Israel, in its defense, denies all allegations of genocidal intent or conduct. It asserts that its military actions have been conducted in self-defense, specifically in response to attacks perpetrated by Hamas, a designated criminal organization. Israel maintains that its operations target military objectives and are carried out in accordance with international humanitarian law. Furthermore, it emphasizes the legal and factual distinction between its actions and the intent to destroy a

national, ethnic, racial, or religious group in whole or in part, which is required for an act to constitute genocide under international law.

This case has attracted significant global attention due to its political, humanitarian, and legal implications. It touches upon core questions of state responsibility, the scope of self-defense under international law, the thresholds required to establish genocidal intent, and the enforceability of international legal norms in active conflict zones.



The inclusion of this topic in the ICJ committee aims to foster a deeper and more objective understanding of one of the most polarizing and tragic conflicts in recent history. Delegates will have the opportunity to engage with the legal principles established by the Genocide Convention, interpret the evidence presented by both parties, and examine the broader role of the ICJ in addressing claims of mass atrocity crimes.

By addressing this case, we, as a Chair, seek to encourage thoughtful legal analysis and promote an informed debate grounded in international law. Understanding the legal dimensions of this case will not only enrich the work of this model, but also help delegates to critically reflect on the effectiveness and challenges of international justice mechanisms in times of crisis.

The Chair considers that the Court is the first step in calming political tensions between two or more parties that are involved in a controversy.

The present document has resources that the Chair wishes the Judges and Advocates use in the correct way, such as that are relevant to discuss this topic.

History of the Committee

The modern history of international arbitration is generally recognized as dating from the so-called Jay Treaty of 1794 between the United States of America and Great Britain.

This Treaty of Amity, Commerce and Navigation provided for the creation of three mixed commissions, composed of equal numbers of American and British nationals, whose task it would be to settle a number of outstanding questions between the two countries which it had not been possible to resolve by negotiation. While it is true that these mixed commissions were not strictly speaking organs of third-party adjudication, they were intended to function to some extent as tribunals. They reawakened interest in the process of arbitration. Throughout the nineteenth century, the United States of America and the United Kingdom had recourse to them, as did other States in Europe and the Americas.

The International Court of Justice is one of the main organs of the United Nations that seeks the peace between States looking for the interest of all Nations and societies. And looks for justice for both parties. Through judges and advocates debates.

The Court is composed of 15 independent judges elected by the United Nations' General Assembly and the Security Council. These judges represent the world's main legal systems and civilizations, and serve nine-year terms, with the possibility of reelection

The International Court of Justice (ICJ) operates in two main capacities:

- Settling legal disputes between States (contentious jurisdiction).
- Issuing advisory opinions on legal questions referred by authorized UN bodies or specialized agencies (advisory jurisdiction).

It is important to note that the International Court of Justice (ICJ) can not trial individuals, nor can it rule on cases without the explicit consent of the states involved.

This year, the International Court of Justice is addressing several critical legal disputes that reflect the complexity of today's international challenges. Such as:

- Invoking the Genocide Convention in the context of the Gaza conflict: South Africa v. Israel and Nicaragua v. Germany cases.
- Allegations of genocide and external involvement in Sudan's internal crisis: Sudan v. United Arab Emirates.
- Land and maritime boundaries: Gabon v. Equatorial Guinea
- Prohibition of inhuman treatment: Canada and The Kingdom of the Netherlands v. The Syrian Arab Republic .

Additionally, it is expected to deliver an advisory opinion focused on Israel's obligations in the Occupied Palestinian Territories. These cases highlight theInternational Court of Justice's essential role in upholding international law and addressing the pressing issues of our time.

Long term

History of the Conflict

The historical roots of the Israeli-Palestinian conflict can be traced to the early 20th century, during the period of British administration over Palestine following the collapse of the Ottoman Empire. The 1917 Balfour Declaration, which expressed support for the establishment of a "national home for the Jewish people" in Palestine, contributed to rising tensions between Jewish and Arab communities. These tensions escalated throughout the British Mandate era, culminating in the 1947 United Nations Partition Plan (Resolution 181), which proposed the division of Palestine into separate Jewish and Arab states. While the Jewish leadership accepted the plan, it was rejected by Arab states and Palestinian representatives. The subsequent declaration of the State of Israel in 1948 and the ensuing Arab-Israeli war led to the displacement of hundreds of thousands of Palestinians—a key event known as the Nakba. The 1967 Six-Day War further intensified the conflict, resulting in Israel's occupation of the West Bank, East Jerusalem, Gaza Strip, Sinai Peninsula, and Golan Heights. Over the following decades, multiple United Nations resolutions and diplomatic efforts sought to address issues of occupation, sovereignty, and self-determination. Despite partial agreements such as the Oslo Accords in the 1990s, the failure to achieve a lasting settlement, combined with recurring violence during the Second Intifada (2000–2005), entrenched deep divisions. These historical developments form the legal and political backdrop against which current claims regarding international obligations, including those under the Genocide Convention, are now being adjudicated before the Court.
(During 2005 some Israelite civilians left their homes at Gaza Strip and some settlements in the West Bank, some members of the armed forces that were assigned by the government of Israel.(No se entiende la idea)

In the same year, the armed group Hamas improved their armed capacities, so the leaders in Israel decided to build a wall of seven hundred kilometers. This measure was taken to avoid Hamas getting even more access to different bellicose resources. The maritime and airspace of the Gaza Strip remained controlled by Israel. The consequences of this decision were that the civilians in the Gaza Strip were isolated from food resources and water.

In 2007, as a result of internal political conflicts between Hamas and Al Fatah to decide the capacities of the leadership of the government, the conflict finally ended with Hamas armed forces established in the Gaza

Strip and Al Fatah armed forces established in the West Bank. The Al Fatah government was supported by other political groups, such as the Russian government, the United States of America government, the European Union and UN.

According to the previously mentioned points, the Egypt Arabian Republic and Israel decided to lock all possible borders of the Gaza Strip. The civilians had to live with shortages of several resources. This blockade also stopped the exportation of products from the Gaza Strip. One million five hundred thousand civilians in the Gaza Strip managed to survive due to escapes through tunnel networks with Egypt, without the authorities knowing about it.

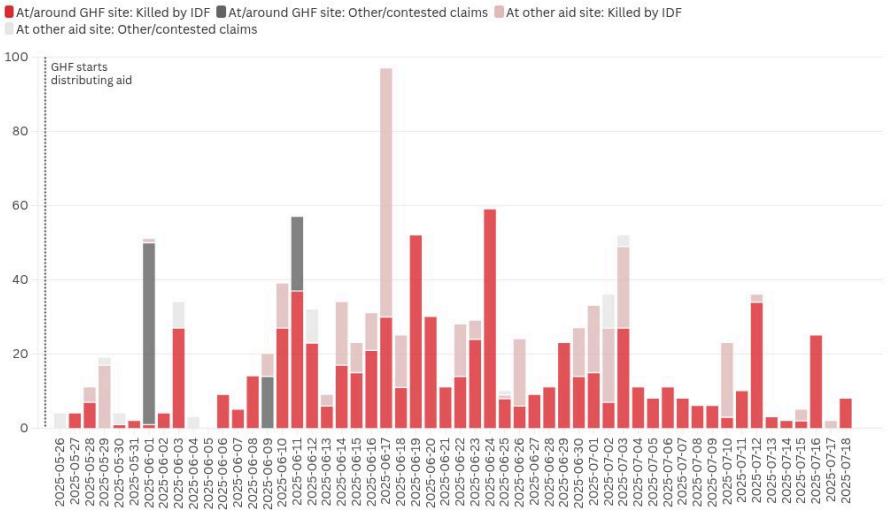
After six months of agreements and negotiations to avoid the blockade, Hamas leaders decided to send multiple remotely controlled and manipulated explosive resources to some regions in Israel; these, bellicose matches happened again in 2008, 2012 and 2014. During the conflict in 2014 more than two thousand people passed away, while on the other hand, only 6 people from Israel lost their lives.

Israel has been a State with a lot of capacities because of the support from the United States of America.This country has supported Israel through offering different kinds of bellicose resources and members to work in the armed forces. With this reinforcement from the United States of America Israel could makethe Iron Dome. This machine is used to effectively stop ninety percent of explosive resources sent to Israel.

Consequences

This conflict has generated several crises, such as, shortage of vital resources, affecting the population's health, food and safety, among other issues. . Also, around 10 million civilians from Israel have passed away between 2005 and 2023.

On October 7th, 2023, multiple explosive resources were sent from the Gaza Strip to some territories in Israel. The armed forces decided to send many explosive resources and an invasion to the Gaza Strip. During this conflict 20,000 people passed away; 6,500 were people under 18.



Source: ACLED
Data until July 18, 2025

THE HINDU

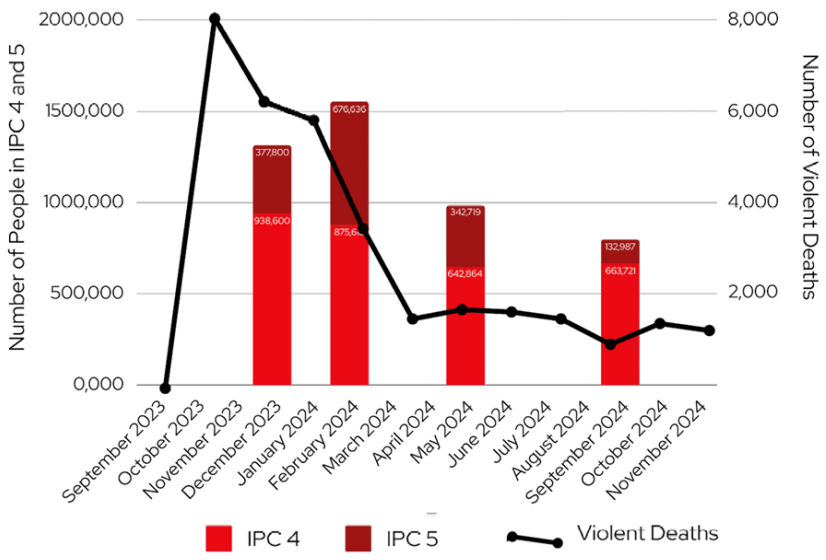
Short Term

South Africa brought the case to the ICJ on 29 December 2023 because of the situation that has been considered as an injustice to be discussed at one of the Main Organs in the UN. This nation asserts that Israel has acted in defiance of the Convention on the Prevention and Punishment of the Crime of Genocide in the territory of the Gaza Strip. This conflict has shown a sustained escalation over the years.

In the case of "Application of the Convention on the Prevention and Punishment of the Crime of Genocide in the Gaza Strip (South Africa v. Israel)". The applicant party, South Africa, holds the Political leaders at Israel as responsible of genocide and systematic elimination of population in the region of the Gaza Strip at least since 2019. South Africa has also asked for provisional measures to continue with the most productive and competent way to proceed with the correct protocol.

In this case, the ICJ was requested to order Israel to cease its military activity in the Gaza Strip in order to prevent the concealment of the crime of genocide, as well as to protect civilians and other affected individuals. In the event that this crime is proven, it was also requested that Israel was to be restricted from interfering and instead required to cooperate with the relevant investigations and to preserve evidence and prevent irreparable damage.

Social, political and economic consequences.



The social, economic and political consequences of this topic may pose a significant threat to the wellbeing of society. Therefore, the primary objective of this committee is to prevent such outcomes by adopting measures that promote stability and sustainable development among the nations involved.

Social Consequences: These consequences include rising tensions among communities, polarization of public opinion, and the deterioration of interethnic and international relations. Furthermore, such disputes risk deepening social divisions and undermining efforts toward peace and mutual understanding.

Political Consequences: These sectors of repercussions are substantial and far-reaching. The case presented before the International Court of Justice has intensified diplomatic tensions, strained bilateral and multilateral relations, and prompted divisions within international organizations. Additionally, the dispute has sparked debates over the role of international law and accountability, potentially reshaping geopolitical alliances and influencing the foreign policies of many states.

Economic Consequences: The economic consequences arising from the conflict particularly due to the legal proceedings before the International Court of Justice have the potential to disrupt trade relations, affect investment flows, and create uncertainty in regional and international markets. Diplomatic tensions may lead to sanctions, boycotts, or the suspension of bilateral agreements, which can negatively impact sectors such as commerce, technology, and resource exchange. Therefore, it is essential for this committee to consider the economic implications of the conflict and work toward solutions that promote economic stability and cooperation among nations.

Topic and the United Nations

The United Nations has taken a firm and active stance on the Implementation of the Convention against genocide in the particular case of "South Africa v. Israel", the United Nations has played a crucial role in promoting international justice and implementing measures to address and prevent cruel and inhuman treatment.

United Nations Position

The United Nations (UN), as a multilateral body committed to upholding international law and the protection of human rights, has expressed deep concern over the escalation of the conflict in the Gaza Strip. Various UN bodies, including the General Assembly and the Human Rights Council, have issued resolutions condemning the disproportionate use of force by Israel and highlighting the severe humanitarian crisis in the region.

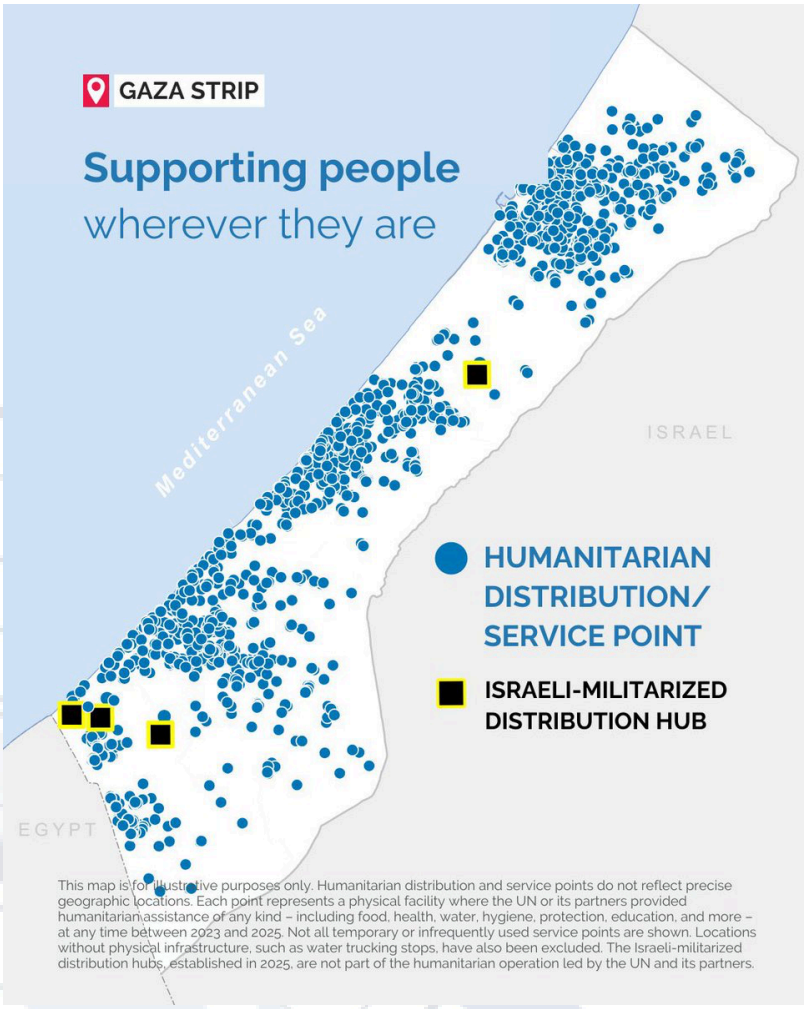
In the specific case brought by South Africa before the International Court of Justice (ICJ), the UN does not take a direct stance regarding the guilt or innocence of either party. However, it acknowledges the right of any State Party to the Convention on the Prevention and Punishment of the Crime of Genocide to refer a case to the Court when a credible suspicion of a breach arises. South Africa alleges that Israel's actions in Gaza amount to acts of genocide, while Israel firmly denies these claims and asserts that its military operations are legitimate responses to attacks from armed groups such as Hamas.

The UN Secretary-General has reiterated the call for an impartial, transparent, and evidence-based investigation, while urging an immediate cessation of hostilities and respect for international humanitarian law. Concurrently, UN humanitarian agencies, including United Nations Office for the Coordination of Humanitarian Affairs (OCHA) and United Nations Relief and Works Agency for Palestine Refugees in the Near East (UNRWA), have reported the destruction of civilian infrastructure and a high number of casualties among the Palestinian population.

In this context, the ICJ operates as the principal judicial organ of the United Nations to adjudicate legal disputes between States. The filing of this case not only seeks a legal ruling but also reflects a growing demand within the international community for accountability regarding potential "war crimes" or crimes against humanity.

United Nations Actions

1. Acknowledgement of ICJ Jurisdiction
The UN Secretary-General recognized the jurisdiction of the International Court of Justice under the Genocide Convention and underscored the importance of respecting its rulings, while remaining neutral in the case.



2. Support for Provisional Measures
After South Africa requested provisional measures, the ICJ issued an order in January 2024 compelling Israel to prevent genocidal acts, allow humanitarian aid into Gaza, and preserve relevant evidence. The UN has emphasized the binding nature of such orders under international law.

3. Humanitarian Monitoring and Reporting
UN bodies such as OCHA, UNRWA, and the Office of the High Commissioner for Human Rights have expanded their monitoring, reporting, and humanitarian operations in Gaza, documenting the situation and providing data cited in legal and diplomatic contexts.

4. General Assembly Resolutions
Several resolutions adopted by the UN General Assembly have condemned the humanitarian situation in Gaza, urged compliance with international law, and expressed support for the ICJ's legal proceedings. These non-binding resolutions reflect widespread concern among Member States.

5. Diplomatic Engagement and Public Statements

High-ranking UN officials have issued statements calling for the protection of civilians, the respect of international humanitarian law, and the full cooperation with the ICJ's legal process.

6. Promotion of Accountability
The UN has reiterated the role of international justice mechanisms, including the ICJ and International Criminal Court (ICC), in ensuring accountability for alleged "war crimes", crimes against humanity, and genocide.

Solutions and Treaties Implemented.

1. Convention on the Prevention and Punishment of the Crime of Genocide (1948)
This treaty, commonly known as the Genocide Convention, is the primary legal basis for South Africa's case against Israel. Both countries are signatories, and the Convention grants State Parties the right to bring disputes concerning its interpretation or application before the ICJ. The Court's jurisdiction in this case stems directly from Article IX of the Convention.

2. UN General Assembly Resolution ES-10/21 (2023)
Adopted in an Emergency Special Session, this resolution called for an immediate humanitarian ceasefire in Gaza and emphasized the need to protect civilians in accordance with international humanitarian law. While not legally binding, it reflects international consensus and political will, and has been cited as a diplomatic foundation for de-escalation efforts.

3. ICJ Provisional Measures (January 2024)
As an urgent legal remedy, the ICJ issued a set of provisional measures ordering Israel to take all possible steps to prevent acts that could constitute genocide, to allow humanitarian access to Gaza, and to preserve evidence. These measures are legally binding and serve as temporary protections while the case is under review.

Controversy Points

Why is the topic controversial?

The ongoing armed conflict has resulted in widespread civilian suffering over several years. Far from being a mere territorial dispute, the situation is deeply complex, shaped by geopolitical interests, economic pressures, and religious divisions. Numerous international resolutions have failed to de-escalate tensions, and alleged violations of international humanitarian law have drawn global scrutiny. The ICJ is thus called to evaluate not only legal responsibility, but also the broader implications for international peace and justice.

Another point of controversy is the international relations of Israel (respondent party) since this country has had several frictions with different Arabian countries, such as The Islamic Republic of Iran and The Syrian Arab Republic.

These differences between countries make it clear that the country is not good at developing calm, peaceful, or even different political paths from its own ideals.

The position of the involved

Applicant party:
South Africa alleges that Israel's military actions in Gaza involve widespread and systematic attacks against Palestinian civilians, including the targeting of residential areas, displacement of populations, destruction of infrastructure, and obstruction of humanitarian aid. Pretoria argues that these acts, taken together with statements made by Israeli officials, reflect an intent to destroy, in whole or in part, the Palestinian people in Gaza, meeting the threshold of genocidal intent under Article II of the Genocide Convention.

Furthermore, South Africa frames its legal action within its historic commitment to international law, human rights, and anti-apartheid principles. It claims an obligation to act in the face of genocide, regardless of direct involvement in the conflict.

Respondent Party:

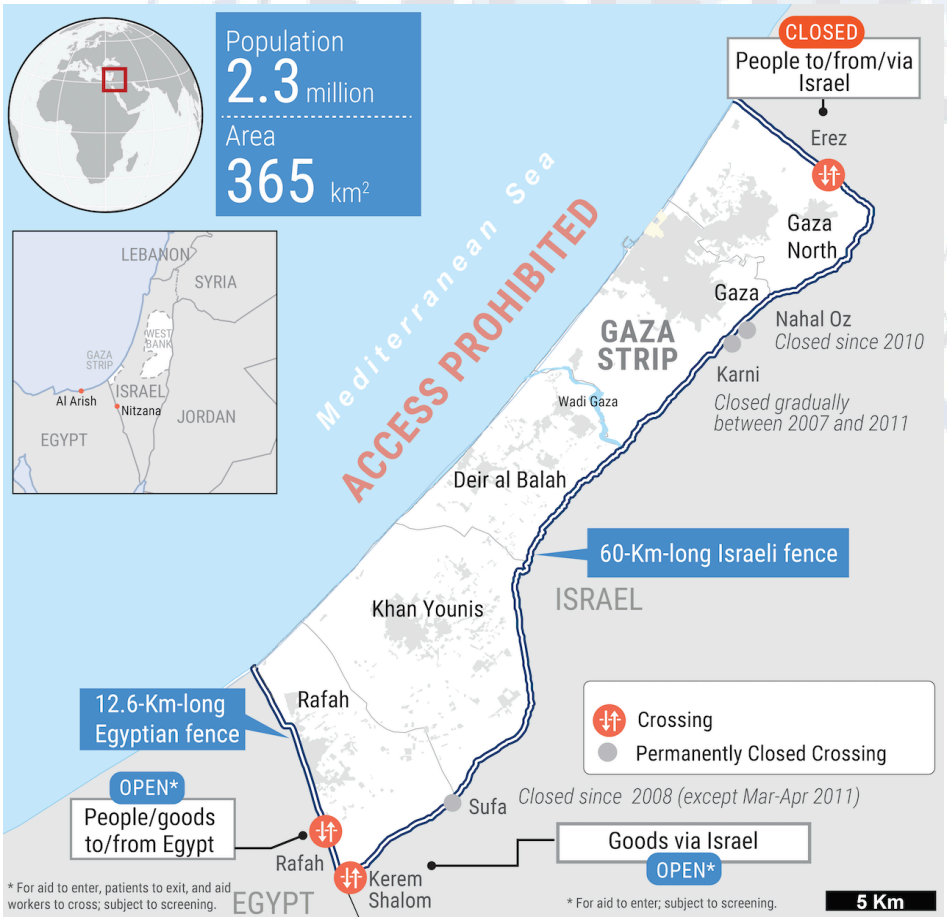
Israel categorically denies all allegations of genocide, stating that its military operations are aimed strictly at dismantling Hamas designated

a criminal organization by multiple states following the murdering and kidnapping of over 1,200 Israeli civilians and soldiers during the October 7 attack. Israel argues that it has taken measures to mitigate civilian harm, including issuing evacuation warnings and facilitating humanitarian corridors, despite the urban warfare complexities imposed by Hamas's tactics.

Israel views South Africa's claims as politically motivated and legally unfounded. It contends that the ICJ does not have jurisdiction over this case due to the absence of a genuine legal dispute under the Genocide Convention and insists that its actions fall under legitimate self-defense as enshrined in Article 51 of the UN Charter.

Why does a debate arise?

The current legal dispute arises from the escalation of violence following the October 7, 2023 attacks by Hamas on Israeli territory, which triggered a large-scale military response by Israel in the Gaza Strip. As civilian casualties and humanitarian concerns mounted, South Africa submitted an application to the ICJ in December 2023, alleging that Israel's actions in Gaza constitute violations of the Genocide Convention.



The core of the debate lies in whether Israel's conduct amounts to genocide, or whether it constitutes legitimate self-defense against non-state armed groups. This legal and moral controversy has divided the international community and brought fundamental questions of international humanitarian law and state responsibility to the forefront.

Objectives

The International Court of Justice seeks viable solutions admissible under its jurisdiction to preserve and defend international rights.
To achieve the best resolution of the case, the delegates should emphasize and focus on the following procedures and objectives:

- Analysis of the allegations of the requesting parties regarding alleged violations of the Convention on the Prevention and Punishment of the Crime of Genocide.
- Review and assess the evidence presented by both parties to determine the validity of the allegations.
- Facilitate the submission of memorials, counter-memorials, and hearings where both parties present their arguments and evidence.
- Issue a final judgment that addresses the legal questions and determines whether the respondent party has unfulfilled its obligations under the Convention on the Prevention and Punishment of the Crime of Genocide.
- Ensure that the decision is binding on the involved parties, obligating the respondent party to comply with the sentence if it is declared that it has violated the Convention on the Prevention and Punishment of the Crime of Genocide.
- In the case that it is determined that the respondent party has violated the Convention, the Court may order specific remedies, such as the cessation of unlawful acts, assurances of non-repetition, and reparations for the harm caused.
- Include mechanisms to ensure that the respondent party complies with its obligations arising from the Court's judgment.

The International Court of Justice must ensure that the provisions of the Convention on the Prevention and Punishment of the Crime of Genocide are respected by the respondent party, provide a legal resolution to the conflict, and guarantee the protection of human rights involved in the allegations. All processes must be conducted with diplomacy by the delegates and with impartiality and objectivity by the judges. As one of the main organs of the United Nations, this committee is responsible for upholding international law and peace, and it must act and proceed factually to achieve global peace and security. As such, this committee must approach the situation with a commitment to impartiality, legal integrity, and the preservation of international peace and cooperation.

It is therefore imperative that the international community addresses these concerns with urgency, promoting dialogue and justice to prevent further societal harm.

Conclusion

The "Application of the Convention on the Prevention and Punishment of the Crime of Genocide (Republic of South Africa v. State of Israel)" is vital in international law and human rights. The International Court of Justice in the sixteenth edition of the Jesuits Interscholar Model of United Nations (MUNIO) 2025 highlights the seriousness of the allegations of inhuman and degrading treatment during the Gaza Strip conflict and stresses the need for a fair and impartial resolution.

The case brought by South Africa against Israel before the International Court of Justice represents a landmark moment in contemporary international law, seeking the implementation of the Convention on the Prevention and Punishment of the Crime of Genocide amid the ongoing hostilities in Gaza. As the principal judicial organ of the United Nations, the ICJ is entrusted with ensuring that States comply with their international legal obligations, particularly where allegations of mass atrocities and humanitarian law violations are involved. The gravity of this case rests not only in its subject matter, but also in its potential to clarify the legal thresholds for genocide, the scope of provisional measures under Article 41 of the Statute of the Court, and the responsibility of State parties to act in good faith under international treaties.

Delegates must be prepared to assess the complex factual and legal dimensions underlying the South Africa v. Israel proceedings, including the historical context of the Israeli-Palestinian conflict, the conduct of hostilities, and the evolving interpretation of customary international law. They should also bear in mind the significance of provisional measures as a preventative tool rather than a determination on the merits, and the role of *prima facie* jurisdiction in allowing the Court to intervene at an early stage. Moreover, the case raises important questions concerning *omnes* obligations, the duty to prevent genocide beyond national borders, and the requirement that States ensure their military operations remain compliant with the principles of distinction, proportionality, and necessity.

Ultimately, this dispute challenges the international community to uphold the core values enshrined in the Genocide Convention and to reinforce the credibility of multilateral legal mechanisms. Delegates are strongly encouraged to conduct thorough research, analyze both parties' legal arguments, and remain objective when formulating their positions. Their work in this committee will demand precision, empathy, and a deep understanding of international humanitarian and criminal law.

We, as a committee, thank the delegates for their participation and commitment to this important issue. Their performance will reflect maximum effort and a significant contribution to pursuing international justice and peace.

Countries

State of Israel



Israel is being taken to the International Court of Justice because South Africa claims it has violated the Genocide Convention during its military operations in Gaza since October 2023. Israel insists that its actions are acts of self-defense against attacks from Hamas, a group it considers terrorist, and not directed at Palestinian civilians. The Israeli government argues that it tries to avoid civilian casualties and that calling its actions "genocide" is legally and politically incorrect. However, the high number of civilian deaths and the heavy destruction in Gaza have raised serious international concerns about whether Israel is respecting international law.

Republic of South Africa



South Africa brought this case before the International Court of Justice, saying that Israel's actions in Gaza may amount to genocide against the Palestinian population. Based on the Genocide Convention, South Africa believes it has a duty to act when there is a risk of this crime, even if committed by another State. It argues that Israel's attacks and the destruction of basic living conditions in Gaza show a pattern of intent to destroy a protected group. By starting this legal process, South Africa seeks emergency measures to protect civilians and demonstrate its commitment to human rights and global justice.

List of Members of the Court

The 16 Permanent Judges

1. Judge Bogdan Aurescu (România)
2. Judge Dire Tladi (Republic of South Africa)
3. Judge Georg Nolte (Federal Republic of Germany)
4. Judge Giorgio Gaja (Italian Republic)
5. Judge Hilary Charlesworth (Commonwealth of Australia)
6. Judge Iwasawa Yuji (Japan)
7. Judge Joan E. Donoghue (United States of America)
8. Judge Juan Manuel Goméz Robledo (United Mexican States)
9. Judge Julia Sebutinde (Republic of Uganda)
10. Judge Kirill Gevorgian (Russian Federation)
11. Judge Leonardo Nemer Caldeira Brant (Federative Republic of Brazil)
12. Judge Mohamed Bennouna (Kingdom of Morocco)
13. Judge Patrick Lipton Robinson (Jamaica)
14. Judge Peter Tomka (Slovak Republic)
15. Judge Ronny Abraham (French Republic)
16. Judge Xue Hanqin (People's Republic of China

The Invited Judges

1. Judge ad hoc Aharon Barak (State of Israel)
2. Judge ad hoc Dikgang Moseneke (Republic of South Africa)

The Advocates

1. Advocate #1 of the applicant party (South Africa)
2. Advocate #1 of the respondent party (Israel)
3. Advocate #2 of the applicant party (South Africa)
4. Advocate #2 of the respondent party (Israel)
5. Advocate #3 of the applicant party (South Africa)
6. Advocate #3 of the respondent party (Israel)
7. Advocate #4 of the applicant party (South Africa)
8. Advocate#4 of the respondent party(Israel)
9. Advocate #5 of the applicant party (South Africa)
10. Advocate #5 of the respondent party (Israel)

Judges

Their function is crucial for the operation of the Court; they are allowed to speak in first person, because of the fact that the delegate represents an only person, instead of a country. It is their responsibility as well to express their opinion about the topic on the Preliminary Opinion, to which the advocates have not access. The judges must also represent both the neutrality of the Court, applying questions and proposals following the debate, to both parties; as well as being representatives of the region they come from, being Africa, Latin America, Caribbean, Asia, Western and Eastern Europe, respectively.

In the same way, they must read the final dictation of the Court after the Judgment.

Judges ad hoc

Their role is entirely the same as their fellow judges, they can be part of the voting processes, with only one difference, instead of representing an entire region, their work is to explain the judges in a more neutral way than the advocates of the interests of their country.

Advocates

The advocate has three critical labors: to defend, but also counter-attack in a formal way to any argument that can be risky for the country they represent and its position in front of the Court, as well as the entire UN. To establish what they consider correct of its party and what they do not consider correct for the interests to goal, through their two personal documents: The Memorial or Counter-Memorial (depending the party) of the Advocate, in which are presented and explain to judges and the other party the affairs of who they represent. Subsequently, the Rebuttal and Su-rebuttal arrive, in which both parties refute mostly every point that they do not consider correct in the other paper. Finally, during the writing of both working and resolution papers, it is important that the advocate, after the previous work, finds important proposals and establish them as the last will of their country, before the final settlement of the case

Recommended Sources

Application of the convention on the prevention and punishment of the crime of genocide in the Gaza strip (sou. (s/f). Icj-cij.org. https://www.icj-cij.org/case/192

(S/f).Icj-cij.org. https://www.icj-cij.org/sites/default/files/case-related/192/192-20250414-ord-01-00-en.pdf

International court of justice. (s/f). Icj-cij.org

https://icj-cij.org/case/192/institution-proceedings

International court of justice. (s/f). Icj-cij.org. https://www.icj-cij.org/case/192/provisional-measures

The significance of the ICJ South Africa v. Israel case. (s/f). European University Institute., https://www.eui.eu/events?id=567397

Berg, R. What is South Africa's genocide case against Israel at the ICJ? *BBC*. https://www.bbc.com/news/world-middle-east-67922346

Decision of the Court on South Africa's request for additional provisional measures. (s/f). Icj-cij.org. https://www.icj-cij.org/node/203559

(S/f).Digitallibrary.un.org. https://digitallibrary.un.org/record/4082957?ln=es&v=pdf

gaza strip genocide israel - - United Nations Digital Library System. (s/f). Digitallibrary.un.org. https://digitallibrary.un.org/search?ln=es&p=gaza+strip+genocide+israel&f=&action_search=Buscar&rm=&sf=&so=d&rg=50&c=Resource+Type&c=UN+Bodies&c=&of=hb&fti=0&fti=0

(S/f). News.un.org. https://news.un.org/en/search/gaza%20strip

“Those who believe in the world are the ones meant to change it”.

President: Ricardo Rufio Gordian

Secretary: Diego Ordoñez Aguirre

Moderator: Miguel Pintor Pélaez

References

Application of the convention on the prevention and punishment of the crime of genocide in the Gaza strip (sou. (s/f). Icj-cij.org. 04-07-2024, de https://www.icj-cij.org/case/192

(S/f).Amnesty.org. https://www.amnesty.org/en/latest/news/2024/12/amnesty-international-concludes-israel-is-committing-genocide-against-palestinians-in-gaza/

International court of justice. (s/f). Icj-cij.org., de https://www.icj-cij.org/history

Establishment of the International Court of Justice. (s/f). EBSCO Information Services, Inc. | Www.ebsco.com. https://www.ebsco.com/research-starters/law/establishment-international-court-justice

Mingst, & Karen. (2025). International Court of Justice. *Encyclopedia Britannica*.

Couvreur, P. (2017). A brief history of the origins of the ICJ. *The International Court of Justice and the Effectiveness of International Law* (pp. 8–35). Brill | Nijhoff.

United Nations. (n.d.). *UN structure*. United Nations. Retrieved July 9, 2025, from https://www.un.org/en/model-united-nations/un-structure

Application of the convention on the prevention and punishment of the crime of genocide in the Gaza strip (sou. (s/f). Icj-cij.org. https://www.icj-cij.org/case/192

(S/f). Digitallibrary.un.org. Recuperado el 7 de agosto de 2025, de https://digitallibrary.un.org/record/4082957?ln=es&v=pdf

gaza strip genocide israel - Resultados de la búsqueda - United Nations Digital Library System. (s/f). Digitallibrary.un.org. https://digitallibrary.un.org/search?ln=es&p=gaza+strip+genocide+israel&f=&action_search=Buscar&rm=&sf=&so=d&rg=50&c=Resource+Type&c=UN+Bodies&c=&of=hb&fti=0&fti=0

(S/f). News.un.org. https://news.un.org/en/search/gaza%20strip

International Law Commission. (s/f). Legal.un.org. https://legal.un.org/ilc/

ASIL. (s/f). Asil.org. https://www.asil.org/search/node/gaza%20strip

EJIL. (s/f). *European journal of international law.* Ejil.org. https://www.ejil.org

Keller, M. (s/f). *ReliefWeb.* ReliefWeb. , de https://reliefweb.int

Application of the convention on the prevention and punishment of the crime of genocide in the Gaza strip (sou. (s/f). Icj-cij.org. https://www.icj-cij.org/case/192

(S/f).Icj-cij.org. https://www.icj-cij.org/sites/default/files/case-related/192/192-20250414-ord-01-00-en.pdf

International court of justice. (s/f). Icj-cij.org

https://icj-cij.org/case/192/institution-proceedings

International court of justice. (s/f). Icj-cij.org. https://www.icj-cij.org/case/192/provisional-measures

The significance of the ICJ South Africa v. Israel case. (s/f). European University Institute., https://www.eui.eu/events?id=567397

Berg, R. What is South Africa's genocide case against Israel at the ICJ? *BBC*. https://www.bbc.com/news/world-middle-east-67922346

Decision of the Court on South Africa's request for additional provisional measures. (s/f). Icj-cij.org. https://www.icj-cij.org/node/203559